

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lee S. Allistair Pearson	Team: Team # 2	CCRB Case #: 200508686	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/28/2005 7:20 PM	Location of Incident: 140th Street and Willis Avenue	18 Mo. SOL 1/28/2007	Precinct: 40		
Date/Time CV Reported Fri, 07/29/2005 12:02 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/29/2005 12:02 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Query	06987	937315	040 PCT
2. POM Julio Arroyo	13292	934423	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Query	Abuse: PO Brian Query stopped and questioned § 87(2)(b)	A . Exonerated
B . POM Julio Arroyo	Abuse: PO Julio Arroyo stopped and questioned § 87(2)(b)	B . Exonerated
C . POM Brian Query	Abuse: PO Brian Query strip-searched § 87(2)(b)	C . Unsubstantiated
D . POM Julio Arroyo	Abuse: PO Julio Arroyo strip-searched § 87(2)(b)	D . Alleged Victim Unavailable

Synopsis

§ 87(2)(b) filed this complaint via telephone on behalf of his son § 87(2)(b) on July 29, 2005. On July 28, 2005, in the vicinity of 140th Street and Willis Avenue in the Bronx, § 87(2)(b) and § 87(2)(b) were standing proximate to a public housing building with a group of friends. PO Brian Query and PO Julio Arroyo approached them and ordered them to disperse (allegations A and B) because they were blocking pedestrian traffic. § 87(2)(b) and § 87(2)(b) refused to leave the area and § 87(2)(b) was ultimately arrested for § 87(2)(b). He stated that § 87(2)(b) was arrested at this time as well, however, there is no paperwork available that would confirm that § 87(2)(b) was arrested and PO Arroyo maintained that he had no recollection of placing § 87(2)(b) under arrest. While at the 40th Precinct, § 87(2)(b) alleged that he and his brother were strip searched in a stationhouse bathroom (allegations C and D). § 87(2)(b) was transported to Bronx central booking and he stated that § 87(2)(b) was released within minutes after he was strip-searched. § 87(2)(b) stated that he and approximately 15 other individuals were standing near a public housing building when PO Arroyo and PO Query approached and informed them that could not remain gathered in the area due to the fact that they were obstructing pedestrian traffic. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

PO Query denied that he strip-searched § 87(2)(b) in the 40th Precinct. He stated that the charges § 87(2)(b) would not warrant a strip search. There is no notation in either PO Query's memobook or the 40th Precinct command log that § 87(2)(b) was strip-searched. PO Arroyo also denied that § 87(2)(b) was strip-searched at the 40th Precinct. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was unavailable for interview. Neither § 87(2)(b) nor § 87(2)(b) had knowledge as to his whereabouts at the time of § 87(2)(b)'s CCRB interview. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on September 20, 2005. He stated that on July 28, 2005 at approximately 7:20PM, he was standing proximate to a brick wall between a housing project and a school in the vicinity of 140th Street and Willis Avenue with approximately fifteen individuals including: his brother, § 87(2)(b) and two females that were acquainted with his brother. The group was approached by two uniformed officers on foot, PO Query § 87(2)(b) (observed PO Query's nameplate) and PO Arroyo § 87(2)(b) (was able to overhear the officers name at a later time). As the officers approached, § 87(2)(b) observed PO Arroyo making a call on his radio although he could not expound upon the nature of this call. PO Arroyo neared the group and stated, "Listen guys, you have to move from here." § 87(2)(b) asked PO Arroyo why he had to move along and that he was not going to move simply because the officer told him to; the officer did not provide him with a good reason. PO Arroyo initiated conversation with § 87(2)(b) and he instructed PO Query to deal with § 87(2)(b). PO Query requested that § 87(2)(b) produce identification and he complied. He was not sure as to what PO Arroyo stated to his brother during this time. Approximately six additional uniformed police officers arrived at the scene in a marked RMP. § 87(2)(b) repeatedly asked PO Query why he and his acquaintances were stopped and PO Query commented "Are you trying to be smart?" in an effort to provoke § 87(2)(b) however, he did not respond to the officer.

PO Query and PO Arroyo instructed § 87(2)(b) and § 87(2)(b) to stand against a nearby gate and ordered everyone else to leave and all of the individuals present complied. At this time, PO Arroyo claimed that § 87(2)(b) had two outstanding warrants yet § 87(2)(b) denied this stating that he had visited his parole officer that very day. PO Arroyo ignored § 87(2)(b) and proceeded to search and handcuff him. PO Query then placed handcuffs on § 87(2)(b) and, upon feeling the handcuffs touch his wrist, § 87(2)(b) moved his arm slightly and asked, "What are you doing?" PO Query responded by asking, "Oh are you trying to resist arrest?" § 87(2)(b) allowed PO Query to handcuff him and search him yet he continued to question the validity of his arrest claiming that he had done nothing wrong and stated that he and his brother had been racially profiled. § 87(2)(b) was placed in an RMP with his brother and was taken to the 40th Precinct.

At the precinct both § 87(2)(b) and § 87(2)(b) were placed in separate cells. § 87(2)(b) was removed from the cell after several minutes and he was escorted to a bathroom where he was strip-searched, after which he was released from custody and allowed to go home. § 87(2)(b) was then removed from the cell and escorted to the bathroom by PO Query and another officer that he was only able to describe as a skinny white male. He stated that PO1 was instructing PO Query from the bathroom door, regarding what instructions to give and the proper way to conduct a strip search; § 87(2)(b) felt as though he was being used as an example in this regard. PO Query instructed § 87(2)(b) to take off his clothes. At first § 87(2)(b) protested but PO Query ordered him to proceed as instructed. After removing his clothing § 87(2)(b) was made to clap his sneakers together, after which he was ordered to turn around and shake his boxers in the air. He was then allowed to put his clothes back on and was returned to his cell. § 87(2)(b) remained in the cell for several hours until he was to be moved to Bronx Central Booking. At this time an officer entered his cell and placed handcuffs on him and escorted him outside to a van and he was taken to central booking. Upon reaching Bronx central booking, the officers found that there were too many arrests being processed, therefore, § 87(2)(b) was taken to a precinct in Soundview where he was processed for § 87(2)(b).

Results of Investigation

Civilians Not Interviewed

§ 87(2)(b) was not interviewed in connection with this case. The investigator was never able to contact § 87(2)(b) even during the initial phone contacts to schedule interviews. When § 87(2)(b) and his father, § 87(2)(b) appeared at the CCRB in order to be interviewed they stated that they did not know the whereabouts of § 87(2)(b). They explained that he had become embroiled in a dispute with his mother and departed suddenly one week prior to their appearance date. § 87(2)(b) asked that he be notified should the CCRB come into contact with § 87(2)(b). Furthermore, § 87(2)(b) stated that the females who were present during the incident were acquaintances of his brother and he did not know their names or contact information. He stated that all of the individuals that were initially present on the scene left after PO Query and PO Arroyo instructed them to do so at the beginning of the incident.

PO Brian Query

PO Brian Query was interviewed at the CCRB on February 17, 2006. He stated that on July 28, 2005, He worked from 6:00PM to 2:00AM with PO Julio Arroyo. PO Query was dressed in uniform and was assigned to a foot patrol. PO Query stated that he had an entry in his memo book regarding the incident although he did not bring his memo book to the interview. The investigator was able to obtain a copy of his memobook which reads as follows: "1920 witnessed a crowd of people blockin pedestrian traffic. A/O gave lawful order to disperse and the defendant refused by causing a public alarm and annoyance. Furthermore, defendant refused a lawful arrest by A/O by flayling [sic] his arms and refusing to get cuffed."

PO Query stated that he and PO Arroyo were on routine patrol when they approached § 87(2)(b) and § 87(2)(b) because it appeared as if they were "Casing" a nearby store. PO Query could not recall what type of store it was but he did recall that he observed § 87(2)(b) looking in and out of the window to the store. PO Query stated that he asked for § 87(2)(b) and § 87(2)(b)'s ID and also asked them where they were going and what they were doing. PO Query

maintained that it was a friendly conversation and § 87(2)(b) and § 87(2)(b) were not touched. PO Query believed that he did fill out a stop and frisk report. The officers then resumed foot patrol of the area. PO Query stated that approximately 20-25 minutes later PO Arroyo and himself observed § 87(2)(b) and § 87(2)(b) a second time proximate to a housing project. On this occasion they had gathered with approximately 15 friends and were blocking the flow of pedestrian traffic, being loud and causing a public disturbance. PO Query and PO Arroyo then approached the crowd and told them that they had to disperse because they were blocking the flow of pedestrian traffic. PO Query stated that the crowd refused to disperse and were saying, "This is our neighborhood, all we're doing is standing here, you guys are always harassing us." PO Query stated that he asked for § 87(2)(b)'s identification numerous times and each time § 87(2)(b) refused to provide it. PO Query stated that the group was cursing loudly at PO Arroyo and himself saying, "Why the fuck do we have to leave? Why the fuck are you harassing us?" He explained that a housing sector car drove by and observed what was going on between himself and § 87(2)(b). PO Query asserted that he had never seen these officers before and did not know their names. An officer in the patrol car told PO Query to stop arguing with § 87(2)(b) about his ID and to just take him to the precinct. PO Query then approached § 87(2)(b) and informed him that he was going to be arrested and taken to the precinct. § 87(2)(b) resisted by flailing his arms and yelling, thereby causing a scene. At this time the housing police had to assist him in handcuffing § 87(2)(b). PO Query stated that the housing officers held § 87(2)(b)'s arms while he placed handcuffs on § 87(2)(b)'s wrists. § 87(2)(b) was arrested for § 87(2)(a) 160.50. PO Query maintained that § 87(2)(b) was arrested because he had an open warrant. § 87(2)(b) did not resist arrest and was handcuffed by PO Arroyo. § 87(2)(b) and § 87(2)(b) were placed in a patrol car and taken to the 40th Precinct. PO Query stated that at no time did he conduct a strip search of § 87(2)(b) within the confines of the 40th Precinct and he is unaware of what happened to § 87(2)(b) upon arrival at the stationhouse.

PO Julio Arroyo

PO Julio Arroyo was interviewed at the CCRB on May 22, 2006. He stated that on July 28, 2005 he worked from 1730x0205 on a foot patrol assignment with PO Brian Query. Both officers were dressed in uniform at this time. PO Arroyo recorded the incident in his memobook as follows "1920 10-96x2. Defendant § 87(2)(b) for discon and spitting in public." He explained that at approximately 5:20PM he and PO Query were on routine patrol when they observed § 87(2)(b) with a group of four to five males. The group was crowded alongside a housing project building and they were blocking pedestrian traffic. The officers issued a lawful order for the males to disperse and § 87(2)(b) responded by stating "Why do I have to move? This is my neighborhood." PO Arroyo issued a second order for the males to disperse and they refused once more. PO Arroyo explained that he was addressing § 87(2)(b) at this time and PO Query was addressing § 87(2)(b) in a similar fashion since they were the most vocal members of the group. PO Arroyo stated that a crowd of four to five other people began to gather behind the officers as a result of the interaction. Consequently, PO Arroyo began to fear for his safety. He did not observe where these individuals came from due to the fact that he was focused on § 87(2)(b) although he was fairly certain that these individuals were not with the original group of males that were blocking pedestrian traffic. § 87(2)(b) then spit on the sidewalk and PO Arroyo decided to issue a C-summons to § 87(2)(b) for refusing to comply with a lawful order (or for blocking pedestrian traffic; he could not recall which) and for spitting in public. PO Arroyo believed that PO Query arrested one of the males at this time although he was could not be certain. The investigator informed PO Arroyo that § 87(2)(b) alleged that he and his brother § 87(2)(b) were arrested at that time. PO Arroyo stated that he did not recall placing § 87(2)(b) under arrest at any time and he did not observe when § 87(2)(b) was placed in handcuffs. He stated that he was not made aware that § 87(2)(b) and § 87(2)(b) were strip searched at the 40th Precinct and he did not conduct strip searches on either of the two males. PO Arroyo did not prepare a UF 250 although he maintained that two summonses were issued. To the best of his recollection, PO Arroyo resumed patrol after issuing the summonses to § 87(2)(b).

NYPD Documents

The OLBS report for § 87(2)(b) was ordered and received at the CCRB. § 87(2)(b)
§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) The report also indicates that force was used to restrain and remove § 87(2)(b) from the scene.

The Roll Call for the tour during which the incident occurred reflects that both PO Arroyo and PO Query were present for duty and were assigned to a foot post. The command log is also on file and it indicates that § 87(2)(b) was in apparently normal condition when he was arrested. There is no notation that he was strip-searched as he alleged. There is no entry for § 87(2)(b) in the command log. It also indicated that § 87(2)(b) was arrested for § 87(2)(a) 160.50. The stop and frisk report as well as the stop and frisk log were ordered, however, it was found that there was no stop and frisk report on file despite the fact that PO Query claimed to have prepared one.

§ 87(2)(g) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Subject Officer CCRB History

Neither PO Arroyo nor PO Query has had any substantiated CCRB allegations that have been brought against them.

Complainant CCRB History

This is § 87(2)(b)'s first and only CCRB complaint. There were several other individuals in the CTS database by the name of § 87(2)(b) however, they were not the same individual associated with this case.

Complainant Conviction History

§ 87(2)(b) § 87(2)(b) § 87(2)(b)

Conclusions and Recommendations

Undisputed Facts

It is undisputed that on July 28, 2005, § 87(2)(b) and his brother § 87(2)(b) along with several friends were standing in the vicinity of 140th Street and Willis Avenue when PO Julio Arroyo and PO Brian Query approached them. The officers ordered the group to disperse, however, § 87(2)(b) and § 87(2)(b) questioned the officers as to why they had to disperse and stated that they lived in the neighborhood. The officers issued another order and the § 87(2)(b) continued to question the order. § 87(2)(b) was then placed under arrest for § 87(2)(a) 160.50. He was brought to the 40th Precinct where he was processed.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Recommendations

Allegation A: PO Brian Query stopped and questioned § 87(2)(b)

Allegation B: PO Julio Arroyo stopped and questioned § 87(2)(b)

§ 87(2)(b), § 87(2)(g) stated that he and approximately 15 other individuals were standing near a public housing building when PO Arroyo and PO Query approached and informed them that could not remain gathered in the area due to the fact that they were obstructing pedestrian traffic. The officers issued a warning, which was not heeded, followed by a lawful order with which § 87(2)(b) and § 87(2)(b) did not comply. As a result § 87(2)(b) was handcuffed, searched and placed under arrest for disorderly conduct. § 87(2)(b), § 87(2)(g)

Allegation C: PO Brian Query strip-searched § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g). PO Query denied that he strip-searched § 87(2)(b) particularly since he was arrested for § 87(2)(b). There is no indication in either PO Query's memobook or the 40th Precinct command log that § 87(2)(b) was strip-searched. PO Arroyo also denied that § 87(2)(b) was strip-searched at the 40th Precinct. There is no documentary evidence available which would confirm this allegation. There were no witnesses to the incident save for the officer that instructed PO Query on how to conduct the strip search and § 87(2)(b) was unable to get a clear look at him as he stood outside of the bathroom door. It § 87(2)(g)

Allegation D: PO Julio Arroyo strip-searched § 87(2)(b)

As stated above, § 87(2)(b) was unavailable for interview. Neither his father nor his brother was aware of his whereabouts at the time when they were interviewed. They even asked that the investigator contact them should he be located pursuant to this investigation. As a result, § 87(2)(b) was unable to confirm the allegation that he was strip-searched and no details surrounding said allegation are available. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: